

Type of Case - Check only one:	☒ Civil (includes divorce, child support, custody, modification, enforcement, etc.)
☐ Name change - Adult	☐ Emancipation

The items in this box will NOT print on your form.

IN THE _____ COURT OF _____ COUNTY, NEBRASKA
Choose the court (County or District) Choose the county (county where original action filed)

IN THE MATTER OF THE ESTATE OF _____
OF: _____

Plaintiff/Petitioner.

Case No. _____
(case number assigned by clerk of court)

VS. _____ (Defendant)

Defendant.

child. _____
Defendant/Respondent.

ORDER TO PROCEED IN FORMA PAUPERIS

THIS MATTER came before the court upon the Affidavit and Application to Proceed In Forma Pauperis and to permit commencement of the above-captioned action without prepayment of fees, costs, and expenses, or provision of security and for an Order directing _____ County,
(name of county where filed)

Nebraska, to pay the ☐ plaintiff's/ ☐ defendant's/ ☐ petitioner's/
☐ _____ costs, fees, and other expenses related to this action.

The court, being fully advised in the premises, finds and orders as follows:

1. The ☐ plaintiff/ ☐ defendant/ ☐ petitioner/ ☐ _____
brings this action to/for _____ in good faith.
(Type of case being filed)
2. The ☐ plaintiff/ ☐ defendant/ ☐ petitioner/ ☐ _____
cannot commence with the action to/for _____
(Type of case being filed)
if required to prepay fees, costs, and expenses, or provide security.
3. The ☐ plaintiff/ ☐ defendant/ ☐ petitioner/ ☐ _____
is without adequate income or resources to pay such costs, fees, and expenses, or
to provide security.
4. Pursuant to [Neb. Rev. Stat. §§ 25-2301 to 25-2310](#), such costs, fees and
expenses may be paid by the county in which the action is filed.

5. The clerk of the district court of _____ County,
(name of county where filed)
Nebraska, shall permit the ☐ plaintiff's/ ☐ defendant's/ ☐ petitioner's/
☐ _____ action to proceed without prepayment of fees,
costs, and expenses, or provision of security.
6. The responsible officer of the court shall issue and serve all writs, process,
and proceedings without cost to the ☐ plaintiff/ ☐ defendant/ ☐ petitioner/
☐ _____.
7. _____ County, Nebraska, shall initially pay costs,
(name of county where filed)
including the cost of publication, and other expenses related to this action.

Dated: _____.

BY THE COURT:

Judge